

25STCV20845 25STCV20845

County: los-angeles

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Case Number: 25STCV20845 Hearing Date: August 13, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

DATE

August 13, 2026

CASE NUMBER

25STCV20845

MOTION

Motion for Attorney's Fees

MOVING PARTY

Plaintiff Jose Santos Casco Tobias

OPPOSING PARTY

Defendant Kia America, Inc.

MOTIONS

Plaintiff

Jose Santos Casco Tobias ("Plaintiff") settled his claims against Defendant Kia America, Inc. ("Defendant"). Now, Plaintiff seeks attorney fees.

Defendant opposes the motion.

ANALYSIS

The prevailing party must seek an award of attorney fees by way of a noticed motion and bears the burden of proof to justify the amount sought. (Code Civ. Proc., § 1033.5, subd. (c)(5)(A).)

In the instant case, Plaintiff contends his attorney billed \$40,297.50 in attorney fees. This lodestar figure is based on billing at the hourly rate of \$675 per hour. "The reasonable market value of the attorney's services is the measure of a reasonable hourly rate. This standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represent the client on a straight contingent fee basis, or are in-house counsel." (Chacon v. Litke (2010) 181 Cal.App.4th 1234, 1260, internal quotations and citations omitted.)

Based on the Court's experience in reviewing requests for attorney fees in similar litigation and the evidence before the Court, the Court concludes, for this matter, \$625 per hour is a reasonable rate for attorneys engaged in similar litigation in the Los Angeles area. (Stratton v. Beck (2017) 9 Cal.App.5th 483, 496.) Accordingly, the Court adjusts the lodestar figure down to \$37,312.50. The Court concludes this hourly rate amply compensates Plaintiff's counsel for work performed in this case and declines to award a multiplier.

As Defendant points out, Plaintiff settled this matter after Plaintiff was deposed. Thus, Plaintiff's counsel drafted the complaint, served initial disclosures, defended Plaintiff at deposition, and settled the matter after informal settlement discussions had taken place. Both the complaint and motion for attorney fees are fairly standard for actions brought under the Song-Beverly Consumer Warranty Act, in which Plaintiff's counsel specializes, and should not have

required Plaintiff's attorney to perform substantial work beyond modifying templates. Indeed, Plaintiff's counsel states he has litigated hundreds of such cases. (See Declaration of Arye C. Abraham, ¶ 6.) Nonetheless, Plaintiff's counsel billed 59.7 hours in connection with this matter.

In the instant case, the Court finds "an unreasonably excessive amount of time was spent on a noncomplex matter." (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 253.) In that vein, Plaintiff's counsel billing 8.3 hours of anticipated time in connection with reviewing Defendant's opposition to the instant motion and drafting a reply brief is unreasonably inflated. In his reply to the opposition, Plaintiff's counsel indicates he spent 8.8 hours on these tasks. (See Declaration of Arye C. Abraham in Support of Plaintiff's Reply, ¶¶ 8-11.) The Court will permit 5 hours of total time for such tasks, and, therefore, deducts 3.3 hours from the original billing. Further, the billing records Plaintiff's counsel advances show he billed for simple clerical matters such as calendaring and determining the appropriate filing courthouse. "[P]adding in the form of inefficient or duplicative efforts is not subject to compensation." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132, internal citations and quotations omitted.) Accordingly, the Court deducts an additional 2.6 hours for such billings.

Finally, Plaintiff's attorney's invoice reflects block billing. "Block billing occurs when a block of time is assigned to multiple tasks rather than itemizing the time spent on each task." (Mountjoy v. Bank of America, N.A. (2016) 245 Cal.App.4th 266, 279, internal quotations and citations omitted.) This too warrants a reduction in costs. The Court identified 7.6 hours of block billing and deducts 3.0 hours for same.

Accordingly, the Court concludes it is appropriate to deduct 8.9 hours from the 59.7 hours for which Plaintiff's counsel has accounted in his billings. The Court, therefore, awards Plaintiff attorneys fees in the amount of \$31,750, representing 50.8 hours at a rate of \$625 per hour.

On March 4, 2026, Plaintiff filed and served on Defendant's counsel a memorandum of costs, which Defendant was required to oppose by virtue of a motion to tax costs 15 days after such service. (Cal. Rules of Court, rule 3.1700(b)(1).) Defendant did not do so. The Court, therefore, awards Plaintiff his costs of 837.70, for a total award of attorney fees and costs of \$32,587.70.

CONCLUSION AND ORDER

Defendant is

ordered to pay Plaintiff, through his counsel, \$32,587.70 within 30 days of the issuance of this order.

Plaintiff is ordered to provide notice of the Court's ruling and to file proof of service of same.